

9.	25PR0362	IN THE MATTER OF THE 2016 CHARLES H. CONN REVOCABLE TRUST (AS AMENDED AUGUST 30, 2023)
MOTION TO CONTINUE TRIAL, DISCOVERY MOTIONS, PRELIMINARY INJUNCTION		

This matter stems from five motions: 1) Motion to Quash Deanna Martynse's Deposition Subpoena for Production of Business Records to Trumark Services, Inc.; 2) Motion to Quash Deanna Martynse's Deposition Subpoena for Production of Business Records to Wells Fargo Bank, National Association; 3) Ex Parte Application for Temporary Restraining Order and Order to Show Cause Regarding a Preliminary Injunction to Enjoin Entry into and Destruction of Trust Property, Retaining Trust Property and Documents, and to Order Parties to Return All Trust Property; 4) Motion to Compel Further Responses to Requests for Admission, Set One, and Form Interrogatories, Set One; Request for Monetary Sanctions; and 5) Motion to Continue Trial Date

MOTION TO CONTINUE TRIAL DATE

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On June 29, 2026, Petitioner, Deanna Martynse ("Petitioner"), filed a 1) Motion to Continue Trial Date; 2) Memorandum of Points and Authorities; and 3) Declaration of Robert Vaughan in Support of Motion to Continue Trial Date.

On the same date, Respondent/Trustee, Ronald J. Conn ("Respondent" or "Trustee") filed a 1) Response to Motion to Continue Trial and Related Dates; Request for *Breslin* Order; and 2) Declaration of Uri Grant in Support of Response to Motion to Continue Trial and Related Dates; Request for *Breslin* Order.

Petitioner requests the Court continue the Trial Confirmation Hearing presently scheduled for July 31, 2026, and the Court Trial presently scheduled for August 4, 2026 for one hundred twenty (120) days, together will all related pretrial deadlines and discovery related deadlines.

Respondent agrees to continue the evidentiary hearing scheduled for August 4, 2026 and all trial-related discovery, motion, disclosure, and pretrial deadlines.

The Court grants Petitioner's request to continue the Trial Confirmation Hearing scheduled for July 31, 2026, and the Trial scheduled for August 4, 2026, together with all related discovery, motion, disclosure, and pretrial deadlines. The Court continues the Trial Confirmation Hearing to January 15, 2027 and Trial to January 19, 2027.

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BRESLIN ORDER

Respondent/Trustee seeks an order to require the parties to mediate pursuant to Probate Code § 17206 and *Breslin v. Breslin* (2021) 62 Cal.App.5th 801.

There is presently no opposition from Petitioner in regards to Respondent's request for mediation. Exhibit B of the Declaration of Uri Grant in Support of Response to Motion to Continue Trial and Related Dates; Request for *Breslin* Order includes email exchanges between counsel wherein it appears the Parties are informally in agreement to mediate; however, no stipulation has been received by the Court.

The probate court has the power to order the parties into mediation. (See Prob. Code § 17206 [“The court in its discretion may make any orders and take any other action necessary or proper to dispose of the matters presented by the petition”].) *Breslin v. Breslin* (2021) 62 Cal.App.5th 801, 806 [276 Cal.Rptr.3d 913, 918]

The Court has the discretion to order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require. Probate Code § 1002.

The Court grants Respondent/Trustee's request. The Court orders all Parties to attend mediation. Trustee shall provide notice to all Parties and beneficiaries of the mediation. Such notice shall instruct that any Party's failure to attend and participate in mediation may forfeit their interest and ability to challenge the result. Payment of mediation fees and expenses shall be paid from the trust. A Status Conference will be held on October 12, 2026 at 8:30 a.m. in department nine.

DISCOVERY MOTIONS

On June 11, 2026, Petitioner/Trustee, Ronald Conn, filed two Motions to Quash relating to Deposition Subpoenas for Production of Business Records to Trumark Services, Inc. and Wells Fargo Bank, National Association.

On June 29, 2026, Petitioner, Deanna Martynse, filed a Motion to Compel Further Responses to Requests for Admission, Set One, and Form Interrogatories, Set One; Request for Monetary Sanctions.

The Court reserves jurisdiction over these discovery motions to October 12, 2026.

PRELIMINARY INJUNCTION

Background

On June 22, 2026, Applicant/Trustee, Ronald J. Conn, filed an Ex Parte Application for Temporary Restraining Order and Order to Show Cause Regarding a Preliminary Injunction to Enjoin Entry into and Destruction of Trust Property, Retaining Property and Documents, and to Order Parties to Return All Trust Property. Trustee requested the Court estop Deanna Martynse

("Deanna") and Cherie Guthrie ("Cherie") from trespassing upon the real property located at 4325 White Rose Lane, Placerville, CA 95667 ("White Rose Lane"), from damaging said property, and from absconding with financial records located therein, thereby ordering them to return the property.

Trustee asserted that on December 28, 2025, Deanna and Cherie entered in the residence of Charles Conn without authorization and absconded with bank statements and financial records belonging to Charles and Ronald. This was discovered by Trustee on February 3, 2026. Of significant importance, divorce documents reflecting the estate distribution between Charles and his ex-wife confirming that the White Rose Lane property was to be titled solely in Charles' name were missing.

Trustee further alleges that on May 15, 2026, Deanna and Cherie committed trespass by entering White Rose Lane without authorization, attempted to disable security cameras that recorded their entry, and attempted to break into a locked room formerly belonging to Charles. Trustee believes they were looking for financial records relating to Charles and Ronald's personal assets. This trespass was witnessed by a neighbor and security cameras. A police officer assisted Ronald in monitoring the home by assessing the damage caused by Deanna and Cherie and noting the documents that had been removed from the home.

Deanna opposed Trustee's request and denied his allegations. Deanna requested the Court deny Trustee's request but if the Court was inclined to grant relief, that she be permitted to: 1) transport her mother to and from medical appointments; 2) visit her mother at her mother's request; 3) provide care and assistance to her mother; 4) communicate freely with her mother; and 5) enter the property with her mother's consent for purposes related to her mother's health, safety, and welfare.

The Court granted the TRO as requested and set a hearing for July 13, 2026.

Legal Principles

"As its name suggests, a preliminary injunction is an order that is sought by a plaintiff prior to a full adjudication of the merits of its claim. [Citation.]" (*White v. Davis* (2003) 30 Cal.3d 528, 554.) The purpose of such an order is to preserve the status quo pending a determination on the merits of the action. (*Id.*, at p. 553; *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)

Code of Civil Procedure section 526 provides for an injunction in the following cases: "(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and such relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. [¶] (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. [¶] (3) When it

appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

[¶] (4) When pecuniary compensation would not afford adequate relief. [¶] (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief. [¶] (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings. [¶] (7) Where the obligation arises from a trust.” (*Id.*, subd. (a).)

A ruling on an application for a preliminary injunction is not an adjudication of the ultimate rights in the controversy. It merely represents the trial court’s discretionary decision whether the defendant should be restrained from exercising a claimed right pending trial. (*Cohen v. Bd. of Supervisors* (1985) 40 Cal.3d 277, 286.) “In deciding whether to issue a preliminary injunction, a trial court must evaluate two interrelated factors: (i) the likelihood that the party seeking the injunction will ultimately prevail on the merits of [their] claim, and (ii) the balance of the harm presented, i.e., the comparative consequences of the issuance and nonissuance of the injunction.” (*Common Cause v. Bd. of Supervisors* (1989) 49 Cal.3d 432, 441–442 [fn. omitted].) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction. [Citation.]” (*Butt v. State of Cal.* (1992) 4 Cal.4th 668, 678.) However, “[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.” (*Ibid.*)

Discussion

Trustee has submitted a Petition to Determine Ownership of Real Property and Personal Property, demonstrating Charles’ intention to include White Rose Lane as an asset of the Trust. Trustee asserts that he has demonstrated some possibility of success from evidence presented in Trustee’s Petition, the Ex Parte application, and supporting documents that the property can’t be sold and must be distributed to him. The Petition includes a copy of the Trust, the Declaration of Trust signed by Charles, and Charles’ pour-over will which demonstrate Charles’ intent. Trustee’s Petition seeks the same relief as Deanna’s Petition, indicating the Petition will be unopposed.

Trustee asserts that without a preliminary injunction, the Trust and Trust beneficiaries will suffer severe interim harm if Deanna and Cherie are not barred from trespassing upon White Rose Lane and from removing and damaging Trust property or further possessing sensitive property belonging to the trust. As acting Trustee, he has a duty to protect and control trust property. Cherie and Deanna’s actions are opening Trustee up to further allegations of breach of fiduciary duty for failing to protect and control trust property, therefore causing irreparable harm to Trustee.

Alternatively, Trustee indicates that Deanna and Cherie will suffer less harm if the preliminary injunction is granted, as they will still receive the financial documentation pursuant to Probate Code § 16060 and they will receive their respective shares of the Trust corpus at the time of distribution.

Deanna argues that the requested relief would interfere with her ability to care for her mother, Bonnie Conn, who resides at the property that is the subject of the temporary restraining order. Deanna assists Bonnie with transportation and medical care. A preliminary injunction would prevent her from caring for Bonnie and would impose substantial hardship.

The Court finds that Trustee has a likelihood of prevailing on the merits of their claim. Additionally, the balance of interim harms weighs in Trustee's favor. The Court grants Trustee's request for a preliminary injunction with the following exceptions:

1. Deanna and Cherie shall be permitted to visit their mother, Bonnie Conn, at the White Rose Lane residence upon Bonnie's request. Deanna and Cherie shall be permitted to provide Bonnie with transportation and assist her with medical appointments and other reasonable caregiving activities at Bonnie's request.
2. During such visits, Deanna and Cherie shall not remove, inspect, inventory, photograph, copy, or otherwise interfere with Charles' personal property or effects, except as reasonably necessary to assist Bonnie or access Bonnie's belongings.
3. Deanna and Cherie are prohibited from removing, turning off, covering or otherwise interfering with any cameras on the property. They shall not instruct Bonnie and or any other agents to conduct prohibited actions referenced herein.

TENTATIVE RULING #9:

MOTION TO CONTINUE TRIAL DATE

PETITIONER'S REQUEST TO CONTINUE THE TRIAL CONFIRMATION HEARING SCHEDULED FOR JULY 31, 2026 AND THE TRIAL SCHEDULED FOR AUGUST 4, 2026, TOGETHER WITH ALL RELATED DISCOVERY, MOTION, DISCLOSURE, AND PRETRIAL DEADLINES IS GRANTED. THE COURT CONTINUES THE TRIAL CONFIRMATION HEARING TO JANUARY 15, 2027, AND THE TRIAL TO JANUARY 19, 2027.

BRESLIN ORDER

THE COURT GRANTS RESPONDENT/TRUSTEE'S REQUEST. ALL PARTIES ARE ORDERED TO ATTEND AND PARTICIPATE IN MEDIATION. TRUSTEE SHALL PROVIDE NOTICE TO ALL PARTIES AND BENEFICIARIES OF THE MEDIATION WHICH WILL INSTRUCT THAT ANY PARTY'S FAILURE TO ATTEND AND PARTICIPATE IN THE MEDIATION MAY FORFEIT THEIR INTEREST AND ABILITY TO CHALLENGE THE RESULT. MEDIATION FEES AND EXPENSES SHALL BE PAID FROM THE TRUST.

PARTIES ARE ORDERED TO APPEAR ON OCTOBER 12, 2026 AT 8:30 A.M. IN DEPARTMENT 9 FOR A STATUS CONFERENCE.

DISCOVERY MOTIONS

THE COURT RESERVES JURISDICTION OVER THE DISCOVERY MOTIONS AS REFERENCED HEREIN TO OCTOBER 12, 2026.

PRELIMINARY INJUNCTION

THE COURT GRANTS TRUSTEE'S REQUEST FOR A PRELIMINARY INJUNCTION WITH THE FOLLOWING EXCEPTIONS:

- 1. DEANNA MARTYNSE ("DEANNA") AND CHERIE GUTHRIE ("CHERIE") SHALL BE PERMITTED TO VISIT THEIR MOTHER, BONNIE CONN, AT THE WHITE ROSE LANE RESIDENCE UPON BONNIE'S REQUEST. DEANNA AND CHERIE SHALL BE PERMITTED TO PROVIDE BONNIE WITH TRANSPORTATION AND ASSIST HER WITH MEDICAL APPOINTMENTS AND OTHER REASONABLE CAREGIVING ACTIVITIES AT BONNIE'S REQUEST.**
- 2. DURING SUCH VISITS, DEANNA AND CHERIE SHALL NOT REMOVE, INSPECT, INVENTORY, PHOTOGRAPH, COPY, OR OTHERWISE INTERFERE WITH CHARLES' PERSONAL PROPERTY OR EFFECTS, EXCEPT AS REASONABLY NECESSARY TO ASSIST BONNIE OR ACCESS BONNIE'S BELONGINGS.**
- 3. DEANNA AND CHERIE ARE PROHIBITED FROM REMOVING, TURNING OFF, COVERING OR OTHERWISE INTERFERING WITH ANY CAMERAS ON THE PROPERTY. THEY SHALL NOT INSTRUCT BONNIE AND OR ANY OTHER AGENTS TO CONDUCT PROHIBITED ACTIONS REFERENCED HEREIN.**

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

July 13, 2026
Dept. 9
Probate Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**